

the new date for the Motion.

Defendant has not filed a proof of service indicating that this notification has occurred.

Disposition

This Motion will be dropped. It will not be continued.

14. 9:00 AM CASE NUMBER: L25-12293
CASE NAME: WELLS FARGO BANK, N.A. VS. ENA ATTIOGBE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ATTIOGBE, ENA
TENTATIVE RULING:

Defendant has filed a Demurrer to the Complaint. Notice was provided and Plaintiff filed a response.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e); CCP 430.30(a); and Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do.

Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 811.

In the instant matter, the Complaint sufficiently alleges the existence of a written agreement between the parties, with definite terms. The writing and terms are reflected in the attachment to the Complaint, which indicate, in summary, that the agreement was executed when Defendant used the credit account, and that the terms involved the lending of money by the Plaintiff, and the obligation of the Defendant to repay the money which Plaintiff lent. Further, the Complaint shows that Plaintiff performed their end of the bargain, yet Defendant failed to do so when Defendant did not pay. Moreover, Plaintiff suffered damages of approximately \$13,000.

The Defendant has alleged that the Complaint fails to establish standing. But the Complaint and the attached contract sufficiently demonstrate that the original creditor, Wells Fargo, is also the Plaintiff.

Disposition

Defendant's Demurrer is overruled.

Plaintiff to file Order.

15. 9:00 AM CASE NUMBER: MSL21-02581

CASE NAME: JPMORGAN VS. VAILUU

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT FILED ON 1/9/26

FILED BY: JPMORGAN CHASE BANK, N.A

***TENTATIVE RULING**

Plaintiff has filed a request to Set Aside a Default Judgment (filed on 9/14/22) and dismiss the matter. There is no service on Defendant, but there is no prejudice in granting the Motion.

Disposition

Plaintiff's Motion to Set Aside Judgment and dismiss the case is granted.

Plaintiff to file Order.

16. 9:00 AM CASE NUMBER: MSL22-00512

CASE NAME: BANK OF AMERICA VS RODRIGUEZ

*HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION FILED BY BANK OF AMERICA, N.A.

FILED BY:

TENTATIVE RULING: